

PETITIONER: RESPONDENT: OTHER PARENT/PARTY:	CASE NUMBER:
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CHILD SUPPORT INFORMATION AND ORDER ATTACHMENT

Attachment to: ☐ Findings and Order After Hearing (form FL-340) ☐ Judgment (form FL-180)
☐ Judgment (form FL-250) ☐ Restraining Order After Hearing (form DV-130)
☐ Other (specify):

THE COURT USED THE FOLLOWING INFORMATION IN DETERMINING THE AMOUNT OF CHILD SUPPORT:

1. ☐ A printout of a computer calculation and findings is attached and incorporated in this order for all required items not filled out below.

2. ☐ **Income**

	<u>Gross monthly income</u>	<u>Net monthly income</u>	<u>Receiving TANF/CalWORKs</u>
a. Each parent's monthly income is as follows:			
Petitioner: \$	\$		☐
Respondent: \$	\$		☐
Other Parent/Party: \$	\$		☐

b. **Earning capacity.** The court finds that the (check all that apply):

- (1) ☐ petitioner has the ability to earn \$ _____ per month.
- (2) ☐ respondent has the ability to earn \$ _____ per month.
- (3) ☐ other parent/party has the ability to earn \$ _____ per month.
- (4) The factors used to calculate earning capacity under Family Code section 4058(b) are stated
 - (a) ☐ in *Earning Capacity Factors Attachment* (form _____).
 - (b) ☐ as follows (specify):

3. ☐ **Children of this relationship**

- a. Number of children who are the subjects of the support order (specify):
- b. Approximate percentage of time spent with petitioner: _____ %
 respondent: _____ %
 other parent/party: _____ %

4. ☐ **Hardships**

Hardships for the following have been allowed in calculating child support:

	<u>Petitioner</u>	<u>Respondent</u>	<u>Other Parent/Party</u>	<u>Approximate end date for the hardship</u>
a. ☐ Other minor children:	\$	\$	\$	
b. ☐ Extraordinary medical expenses:	\$	\$	\$	
c. ☐ Catastrophic losses:	\$	\$	\$	

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5. ☐ **Low-income adjustment**

- a. ☐ The low-income adjustment applies at the lowest amount of the range.
- b. ☐ The lowest amount of the low-income adjustment has been rebutted and does not apply because (specify reasons):

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6. ☐ **Child support**

a. **Base child support**

☐ Petitioner ☐ Respondent ☐ Other parent/party must pay child support beginning (date): _____ and continuing until further order of the court, or until the child marries, dies, is emancipated, reaches age 19, or reaches age 18 and is not a full-time high school student, whichever occurs first, as follows:

<u>Child's name</u>	<u>Date of birth</u>	<u>Monthly amount</u>	<u>Payable to (name):</u>
		\$	
		\$	
		\$	
		\$	

Payable ☐ on the 1st of the month ☐ other (specify): _____

b. ☐ **Mandatory additional child support**

(1) Childcare costs related to employment or reasonably necessary job training

- | | | | | | | |
|---|---|----------|----|-----------------------------|-----------|-------------------|
| (a) ☐ Petitioner must pay: | % | of total | or | ☐ \$ | per month | child-care costs. |
| (b) ☐ Respondent must pay: | % | of total | or | ☐ \$ | per month | child-care costs. |
| (c) ☐ Other parent/party must pay: | % | of total | or | ☐ \$ | per month | child-care costs. |
| (d) ☐ Costs to be paid as follows (specify): _____ | | | | | | |

(2) Reasonable uninsured health care costs for the children

- | | | | | | |
|---|---|----------|----|-----------------------------|------------|
| (a) ☐ Petitioner must pay: | % | of total | or | ☐ \$ | per month. |
| (b) ☐ Respondent must pay: | % | of total | or | ☐ \$ | per month. |
| (c) ☐ Other parent/party must pay: | % | of total | or | ☐ \$ | per month. |
| (d) ☐ Costs to be paid as follows (specify): _____ | | | | | |

c. ☐ **Additional child support**

(1) ☐ Costs related to the educational or other special needs of the children

- | | | | | | |
|---|---|----------|----|-----------------------------|------------|
| (a) ☐ Petitioner must pay: | % | of total | or | ☐ \$ | per month. |
| (b) ☐ Respondent must pay: | % | of total | or | ☐ \$ | per month. |
| (c) ☐ Other parent/party must pay: | % | of total | or | ☐ \$ | per month. |
| (d) ☐ Costs to be paid as follows (specify): _____ | | | | | |

(2) ☐ Travel expenses for visitation

- | | | | | | |
|---|---|----------|----|-----------------------------|------------|
| (a) ☐ Petitioner must pay: | % | of total | or | ☐ \$ | per month. |
| (b) ☐ Respondent must pay: | % | of total | or | ☐ \$ | per month. |
| (c) ☐ Other parent/party must pay: | % | of total | or | ☐ \$ | per month. |
| (d) ☐ Costs to be paid as follows (specify): _____ | | | | | |

d. ☐ **Non-Guideline Order**

This order is ☐ below ☐ above the child support guideline set forth in Family Code section 4055. *Non-Guideline Child Support Findings Attachment* (form _____) is attached.

Total child support per month: \$

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7. **Health care expenses**

- a. Health insurance coverage for the minor children of the parties must be maintained by the ☐ petitioner ☐ respondent ☐ other parent/party if available at no or reasonable cost through their respective places of employment or self-employment. Both parties are ordered to cooperate in the presentation, collection, and reimbursement of any health care claims. The parent ordered to provide health insurance must seek continuation of coverage for the child after the child attains the age when the child is no longer considered eligible for coverage as a dependent under the insurance contract, if the child is incapable of self-sustaining employment because of a physically or mentally disabling injury, illness, or condition and is chiefly dependent on the parent providing health insurance for support and maintenance.
- b. ☐ Health insurance is not available to the ☐ petitioner ☐ respondent ☐ other parent/party at a reasonable cost at this time.
- c. ☐ The party providing coverage must assign the right of reimbursement to the other party.

8. **Earnings assignment**

An earnings assignment order is issued. **Note:** The parent ordered to pay support is responsible for the payment of support directly to the recipient until support payments are deducted from the payor's wages and for payment of any support not paid by the assignment.

9. In the event that there is a contract between a person ordered to receive support and a private child support collector, the parent ordered to pay support must pay the fee charged by the private child support collector. This fee must not exceed 33-1/3 percent of the total amount of past due support nor may it exceed 50 percent of any fee charged by the private child support collector. The money judgment created by this provision is in favor of the private child support collector and the person ordered to receive support, jointly.

10. ☐ **Employment search order (Family Code section 4505)**

☐ Petitioner ☐ Respondent ☐ Other parent/party is ordered to seek employment with the following terms and conditions:

11. **Other orders (specify):**

12. **Notices**

- a. *Notice of Rights and Responsibilities Regarding Child Support* (form) must be attached and is incorporated into this order.
- b. If this form is attached to *Restraining Order After Hearing* (form), the support orders issued on this form (form FL-342) remain in effect after the restraining orders issued on form DV-130 end.

13. **Child Support Case Registry Form**

Both parties must complete and file with the court a *Child Support Case Registry Form* (form) within 10 days of the date of this order. Thereafter, the parties must notify the court of any change in the information submitted within 10 days of the change by filing an updated form.

NOTICE: Any parent ordered to pay child support must pay interest on overdue amounts at the legal rate, which is currently 10 percent per year.

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